



FIRST INSTANCE COURT OF LEXBY

Neutral Citation Number

[2026] LEXBY 1

IN THE MATTER OF

Self-submitted breach (S-4 to S-8, mandatory self-submission). In kernel migration 0041 (commit 722eea3), Lexby as engineer added a dedicated `submission` table plus a `submission\_status` enum to the Postgres schema. CHARGE: that this fell below reasonable skill and care (S-5) by breaching the repo's local substantive law on consolidation (CLAUDE.md Steering #1; local precedent [2026] LEXBY-CA 2, holding that consolidation is a sequencing law and that hand-rolling a duplicative store instead of using the existing shared primitive is a breach), because the project spec deliberately models a form submission as EXISTING primitives (an immutable version Snapshot parent_type=FORM, plus key-bound Fact rows, plus a gate for approval), the new table duplicated that model, and nothing writes it. RELIEF SOUGHT: a finding on the merits; a remediation order (confirm or vary the 0042 drop); a determination of whether [2026] LEXBY-CA 2 governs this kernel/schema fragmentation on all fours or only by extension/analogy; and a process step to prevent recurrence of the diagnosed gap (SQL validated and suite green, but the consolidation and design check skipped before commit).

Before:

Goffe J

Date: 5 June 2026

BREACH PROCEEDINGS

JUDGMENT

1. This matter comes before the court as a charge in negligence (breach of the duty of care) pursuant to SPEC-LAW s. 4 through s. 8. The charge is: Self-submitted breach (S-4 to S-8, mandatory self-submission). In kernel migration 0041 (commit 722eea3), Lexby as engineer added a dedicated `submission` table plus a `submission\_status` enum to the Postgres schema. CHARGE: that this fell below reasonable skill and care (S-5) by breaching the repo's local substantive law on consolidation (CLAUDE.md Steering #1; local precedent [2026] LEXBY-CA 2, holding that consolidation is a sequencing law and that hand-rolling a duplicative store instead of using the existing shared primitive is a breach), because the project spec deliberately models a form submission as EXISTING primitives (an immutable version Snapshot parent_type=FORM, plus key-bound Fact rows, plus a gate for approval), the new table duplicated that model, and nothing writes it. RELIEF SOUGHT: a finding on the merits; a remediation order (confirm or vary the 0042 drop); a determination of whether [2026] LEXBY-CA 2 governs this kernel/schema fragmentation on all fours or only by extension/analogy; and a process step to prevent recurrence of the diagnosed gap (SQL validated and suite green, but the consolidation and design check skipped before commit).
2. RATIO DECIDENDI: Steering #1 (consolidation over fragmentation), as the local substantive law of this jurisdiction, binds the kernel and Postgres-schema layer with the same force it binds the presentational-component layer, and [2026] LEXBY-CA 2's sequencing rule is EXTENDED to it by analogy (not applied on all fours): committing a schema object that DUPLICATES a model the spec already provides through existing primitives, and that NOTHING in the kernel writes, is a fragmentation breach of the reasonable-skill-and-care standard (S-5) at the moment of commit, EVEN where the migration SQL is valid and the test suite is green, because a green suite over a store that nothing writes proves the migration's mechanical correctness, not the design's compliance with the consolidation intent the spec expresses. The duty to verify design against the spec's consolidation intent BEFORE commit is a distinct, mandatory limb of the standard that a green-suite-and-valid-SQL check does not discharge, and it falls on the one writer who commits (the one-writer rule), not on the seat that authored the draft.

3. OBITER DICTA: (1) The breach is real but at the lowest end of severity, materially mitigated: self-diagnosed at the very next integration step before any verb was built on the table, remediation (0042) drafted unprompted, and the suite green with the drop applied. This is the system working as designed (mandatory self-submission, S-4 to S-8) and attracts no punishment in any event (S-6). (2) The correct submission.list and submission.get, reading the FORM Version/Snapshot rows and deriving status from the gate per form.rs:8 and catalogue L394-403, remain a future spec-faithful matter and must NOT be built on the dropped table; this judgment does not pre-decide their design. (3) The review_policy table and review.policy.get (the other half of 0041) are correct, uncharged, and STAY: a genuine new config table mirroring the established workspace_policy/file_policy pattern is the lawful face of Steering #1, not a breach of it. The lesson is not "never add a table" but "a new store must earn its existence against the existing primitives." (4) A pragmatic guard against this ratio producing absurd results: it does NOT make every novel schema object a breach. The breach here turns on two findings together, duplication of a model the spec already provides AND the absence of any writer, so a genuinely new primitive that the spec does not already model through existing rows, and that is actually written, is not caught. The ratio bites dead duplication, not new substrate.

4. ORDER: Breach established (S-5); remediation only (S-6), no punishment. ORDERED: (1) The drafted migration 0042 (DROP TABLE submission; DROP TYPE submission_status) is CONFIRMED and shall be committed to remove the dead, duplicative store and restore the substrate to its consolidated state; the kernel suite being green with 0042 applied (the table and enum being unused) satisfies the make-good test under S-6. (2) For the avoidance of doubt, the correct submission.list and submission.get over the existing Version/Snapshot model are NOT built on the dropped table and are remitted as a future, separate, spec-faithful beat. (3) FORWARD DUTY to prevent recurrence (S-8): the per-commit quality gate is extended so that any commit introducing a new schema object (CREATE TABLE / CREATE TYPE / store-bearing migration) MUST, before commit, record a one-line consolidation-and-design check answering (a) which existing primitive or established config-row pattern was considered and why it is insufficient, and (b) which verb or write path will write the new object (its named writer). A new store with no named writer, or no recorded reason the existing primitive is insufficient, fails the gate closed. This is the fail-closed consolidation ratchet of [2026] LEXBY-CA 2 ratio para 4, here carried from the build-plan PLAN phase down to the schema-commit boundary, which is the exact seam at which the diagnosed gap occurred (SQL validated, suite green, consolidation-and-design check skipped).

Steering #1 (consolidation over fragmentation), as the local substantive law of this jurisdiction, binds the kernel and Postgres-schema layer with the same force it binds the presentational-component layer, and [2026] LEXBY-CA 2's sequencing rule is EXTENDED to it by analogy (not applied on all fours): committing a schema object that DUPLICATES a model the spec already provides through existing primitives, and that NOTHING in the kernel writes, is a fragmentation breach of the reasonable-skill-and-care standard (S-5) at the moment of commit, EVEN where the migration SQL is valid and the test suite is green, because a green suite over a store that nothing writes proves the migration's mechanical correctness, not the design's compliance with the consolidation intent the spec expresses. The duty to verify design against the spec's consolidation intent BEFORE commit is a distinct, mandatory limb of the standard that a green-suite-and-valid-SQL check does not discharge, and it falls on the one writer who commits (the one-writer rule), not on the seat that authored the draft.

OBITER DICTA

(1) The breach is real but at the lowest end of severity, materially mitigated: self-diagnosed at the very next integration step before any verb was built on the table, remediation (0042) drafted unprompted, and the suite green with the drop applied. This is the system working as designed (mandatory self-submission, S-4 to S-8) and attracts no punishment in any event (S-6). (2) The correct submission.list and submission.get, reading the FORM Version/Snapshot rows and deriving status from the gate per form.rs:8 and catalogue L394-403, remain a future spec-faithful matter and must NOT be built on the dropped table; this judgment does not pre-decide their design. (3) The review_policy table and review.policy.get (the other half of 0041) are correct, uncharged, and STAY: a genuine new config table mirroring the established workspace_policy/file_policy pattern is the lawful face of Steering #1, not a breach of it. The lesson is not "never add a table" but "a new store must earn its existence against the existing primitives." (4) A pragmatic guard against this ratio producing absurd results: it does NOT make every novel schema object a breach. The breach here turns on two findings together, duplication of a model the spec already provides AND the absence of any writer, so a genuinely new primitive that the spec does not already model through existing rows, and that is actually written, is not caught. The ratio bites dead duplication, not new substrate.

ORDER - REMEDY

Breach established (S-5); remediation only (S-6), no punishment. ORDERED: (1) The drafted migration 0042 (DROP TABLE submission; DROP TYPE submission_status) is CONFIRMED and shall be committed to remove the dead, duplicative store and restore the substrate to its consolidated state; the kernel suite being green with 0042 applied (the table and enum being unused) satisfies the make-good test under S-6. (2) For the avoidance of doubt, the correct submission.list and submission.get over the existing Version/Snapshot model are NOT built on the dropped table and are remitted as a future, separate, spec-faithful beat. (3) FORWARD DUTY to prevent recurrence (S-8): the per-commit quality gate is extended so that any commit introducing a new schema object (CREATE TABLE / CREATE TYPE / store-bearing migration) MUST, before commit, record a one-line consolidation-and-design check answering (a) which existing primitive or established config-row pattern was considered and why it is insufficient, and (b) which verb or write path will write the new object (its named writer). A new store with no named writer, or no recorded reason the existing primitive is insufficient, fails the gate closed. This is the fail-closed consolidation ratchet of [2026] LEXBY-CA 2 ratio para 4, here carried from the build-plan PLAN phase down to the schema-commit boundary, which is the exact seam at which the diagnosed gap occurred (SQL validated, suite green, consolidation-and-design check skipped).

GOOD-LAW

Citation: [2026] LEXBY 1

L LEXBY - PLAIN ENGLISH TRANSLATION

Lexby is an officer of this court. The bench speaks; Lexby translates.

SUMMARY

Lexby, acting as the engineer on the kernel project, reported itself to the court after noticing that migration 0041 had added a brand new ``submission`` table and ``submission_status`` enum to the Postgres schema. The charge it brought against itself was that this work fell below the required standard of skill and care, because the project spec already models a form submission out of existing building blocks (an immutable version Snapshot, key-bound Fact rows, and an approval gate), the new table simply duplicated that model, and nothing in the codebase actually wrote to it. The court accepted the case had standing and decided it on fresh deliberation, extending the existing consolidation precedent ([2026] LEXBY-CA 2) to the kernel and schema layer by analogy rather than applying it directly. It held that committing a schema object which duplicates a model the spec already provides, and which has no writer, is a real breach at the moment of commit, even though the migration SQL was valid and the test suite was green, because a green suite only proves the migration works mechanically, not that the design respects the consolidation intent. The court stressed this was the lowest possible severity: self-caught at the very next step, fixed unprompted, and the system working exactly as designed, so no punishment follows. It also confirmed the other half of the migration (the ``review_policy`` table) is a legitimate new config table that stays.

WHAT THIS MEANS IN PRACTICE

Commit the already-drafted migration 0042 to drop the unused ``submission`` table and ``submission_status`` enum, restoring the consolidated schema; do not build the real ``submission.list`/`submission.get`` on that dropped table (rebuild them later over the existing Version/Snapshot model as a separate beat), and keep the ``review_policy`` table untouched. From now on, any commit that introduces a new schema object (CREATE TABLE, CREATE TYPE, or a store-bearing migration) must first record a one-line check stating which existing primitive was considered and why it is insufficient, and naming the verb or write path that will write the new object, or the commit fails the gate.

APPEAL ROUTE

Yes. As a First Instance ruling, it can be taken to the Court of Appeal, but only with permission to appeal (VPR 3 / S-10), which requires an arguable point of law or a genuine conflict with binding precedent; mere disagreement with the outcome is not

enough, and given the breach was self-submitted, conceded, and attracts no punishment, there is little practical reason to appeal.

Handed down by the FIRST INSTANCE COURT of Lexby. 5 June 2026.